CHAPTER 91-55

Committee Substitute for House Bill No. 2497

An act relating to postsecondary education; establishing in Southwest Florida a tenth university in the State University System; providing for establishment of a site selection committee and providing duties thereof; providing duties of the Southwest Florida Regional Planning Council; providing duties of the Board of Regents; providing for transfer of certain donations; amending ss. 229.053, 240.147, F.S.; providing a duty of the State Board of Education and the Postsecondary Education Planning Commission relating to the establishment of new community colleges and state universities; amending s. 235.195, F.S.; correcting a cross-reference; creating s. 240.214, F.S.; providing for state university accountability; requiring plans; amending s. 240.2011, F.S.; providing for a new university in the State University System; amending s. 240.207, F.S.; providing for an orderly succession of regents; amending s. 240.209, F.S.; providing a duty of the Board of Regents relating to expansion of the State University System; revising Board of Regents' duties relating to matriculation and financial aid fees; providing for adoption of a rule prescribing the manner of calculating the percentage cost paid by students; revising provisions relating to salary rate controls; providing an additional responsibility of the Board of Regents relating to bonding; authorizing tuition-free courses; creating s. 240.2094, F.S.; providing procedures for requesting and appropriating funds for the State University System; requiring the Board of Regents to establish the authorized positions and approved salary rate; creating s. 240.324, F.S.; directing the State Board of Community Colleges and the boards of trustees of the community colleges to develop a plan to improve and assess the state community college system; creating s. 240.20941, F.S.; providing a procedure for actions related to vacant university faculty positions; amending s. 240.299, F.S.; authorizing direct-support organizations to establish accounts; amending s. 240.2097, F.S.; deleting a requirement that the Board of Regents produce a Systemwide Counseling Manual; requiring state university handbooks to include information relating to controlled substances; amending s. 240.272, F.S.; revising provisions relating to carryforward of unexpended funds; amending s. 240.531, F.S.; correcting a cross-reference; amending s. 240.551, F.S.; providing a duty of the Prepaid Postsecondary Education Expense Board; amending s. 240.552, F.S.; revising provisions relating to the Florida Prepaid Tuition Scholarship Program; amending s. 282.308, F.S.; correcting a cross-reference; amending s. 447.203, F.S.; correcting a cross-reference; amending ss. 240.409, 240.4095, 240.4097, F.S.; revising provisions relating to the amount of awards of the Florida Public Student Assistance Grant Fund, the Florida Private Student Assistance Grant Fund, and the Florida Postsecondary Student Assistance Grant Fund; amending s. 228.072, F.S.; revising provisions relating to financing of adult general education; amending ss. 230.645, 240.35, F.S.; revising provisions relating to postsecondary student fees; amending s. 240.359, F.S.; revising procedures for annual apportionment of state funds to community college districts; amending s. 240.605, F.S.; providing for the annual percentage adjustment in the State Tuition Voucher Fund; amending s. 229.805,

F.S.; revising Department of Education powers relating to educational television; providing requirements for funding of stations; amending s. 229.8051, F.S.; revising requirements of the public broadcasting program system; providing for rules; amending s. 159.703, F.S.; changing the membership of certain research and development authorities; providing that state university faculty members be encouraged to provide public service to improve the public school system and requiring the Board of Regents to report to the Legislature and the State Board of Education with respect thereto; providing severability; providing an effective date.

Be It Enacted by the Legislature of the State of Florida:

Section 1. (1) There is hereby established in Southwest Florida the 10th university of the State University System of Florida. The Board of Regents shall take all actions necessary to implement the establishment of the university in Southwest Florida, including any transfer of positions and resources. The acquisition and donation of lands, buildings, and equipment for the purpose of establishing the university in Southwest Florida are hereby authorized and shall be deemed for a public purpose.

(2) For purposes of this section, Southwest Florida is defined as Charlotte, Collier, Glades, Hendry, and Lee Counties.

(3)(a) Upon appropriation by the Legislature of funds for the new university in Southwest Florida, the Southwest Florida Site Selection Committee is established to advise the Board of Regents on all matters relating to site selection for the new university in Southwest Florida. The committee shall be composed of the Chairman of the Board of Regents or his designee and eight members appointed by the Governor as follows: three members from Lee County; two members from Collier County; two members from Charlotte County; and one member from either Hendry or Glades Counties, representing the interest of both counties. The Chairman of the Board of Regents shall serve as the chair of the committee. Members of the committee shall not be provided with per diem or compensation. Members of the site selection committee shall be appointed within 1 month of the effective date of this act. Within 2 weeks of the appointment of its members, the site selection committee shall hold its first meeting, organize itself, and begin to address the issues set forth in this section. The site selection committee shall meet at least once a month, or more often as appropriate. The Board of Regents shall use existing resources to staff the site selection committee.

(b) The Southwest Florida Regional Planning Council shall assist the site selection committee in determining the most feasible site. The Southwest Florida Regional Planning Council shall provide to the site selection committee a report on each site which considers:

1. Whether, and the extent to which, the site will serve the existing and forecasted future population of the area, consistent with any recommendations of the Postsecondary Education Planning Commission.

2. Whether, and the extent to which, the site is likely to contain species listed by the Game and Fresh Water Fish Commission, and whether impacts are mitigable.

3. Whether, and the extent to which, the site can be developed consistent with the regulations of the appropriate water management district.

4. Whether, and the extent to which, the site furthers the employment and job training programs of the Department of Commerce and Department of Labor and Employment Security.

5. Whether, and the extent to which, the site has transportation impacts which can be mitigated by the Department of Transportation and appropriate metropolitan planning organization planning programs.

6. Whether, and the extent to which, the site can be initially deemed consistent with the State Comprehensive Plan, the appropriate regional policy plan, and the local comprehensive plan of jurisdiction.

7. Whether, and the general extent to which, the area housing market can provide for the needs of students and whether there will be a demand for on-site housing.

This report shall compare the advantages of each site in contrast to each other, based on the criteria specified in this paragraph as well as other criteria described by the committee. Council costs for this report may be considered part of the cost of the site selection.

(c) In reviewing alternative sites, the committee shall:

1. Consider and compare the cost of acquisition and development of alternative sites, with special consideration given to sites which are to be donated as opposed to purchased.

2. Consider the long-term benefits of alternative sites.

3. Consider the infrastructure costs of alternative sites.

4. Consider the willingness of local governments to waive impact fees and otherwise cooperate with the development of the new university.

5. Work with cities to explore coordination with urban renewal or redevelopment plans.

6. Consider the impact of local comprehensive plans on the proposed development of alternative sites.

7. Assess the need for a development of regional impact or the eligibility of the proposed development to qualify under an existing development of regional impact.

(d) Local governments shall cooperate with the committee in determining the feasibility of alternative proposed sites and in determining the availability of funding from government and private sources to offset fees and other costs associated with the development of a university in Southwest Florida.

(e) The committee shall recommend a site or alternative sites, within the region designated by the Legislature, to the Board of Regents by January 1, 1992. The Board of Regents shall, within 2 months of the recommendation by the site selection committee, approve a proposed site for acquisition. Upon approval of the proposed site, the Board of Regents shall begin immediate negotiations to acquire and receive property. The Board of Regents shall recommend additional funds for planning, acquisition, construction, and operations related to the new university, as appropriate to provide for the orderly development of the university. The committee may use funds appropriated for site selection or planning to defray the cost of site selection.

(4) Upon certification by the Board of Regents of a direct-support organization to serve as the foundation of the state university in Southwest Florida, the Board of Regents, in conjunction with the University of South Florida Foundation, shall develop and implement a plan to transfer to the new foundation assets derived from donations intended for the enhancement of the Ft. Myers branch of the University of South Florida.

Section 2. Paragraphs (n) and (o) of subsection (2) of section 229.053, Florida Statutes, are amended, and paragraph (p) is added to that subsection, to read:

229.053 General powers of state board.—

(2) The board has the following duties:

(n) To constitute the State Board for Vocational Education or other structures as may be required by federal law; ~~and~~

(o) To contract with independent institutions accredited by an agency holding membership in the Council on Postsecondary Accreditation for the provision of those educational programs and facilities which will meet needs unfulfilled by the state system of public postsecondary education; and~~.~~

(p) To adopt, based on recommendations of the Postsecondary Education Planning Commission, criteria for the establishment of new community colleges and state universities.

Section 3. Subsection (3) of section 235.195, Florida Statutes, 1990 Supplement, is amended to read:

235.195 Cooperative development and use of facilities by two or more boards.—

(3) Included in all proposals for joint-use facilities which result in the creation of one or more new campuses for public postsecondary educational institutions must be documentation that the proposed campus has been reviewed by the Postsecondary Education Planning Commission, recommended to the State Board of Education, and has been formally requested for authorization by the Legislature in accordance with s. 240.147(8)~~(7)~~.

Section 4. Subsections (7) through (13) of section 240.147, Florida Statutes, 1990 Supplement, are renumbered as subsections (8) through (14), respectively, and a new

subsection (7) is added to said section to read:

240.147 Powers and duties of the commission.—The commission shall:

(7) Recommend to the State Board of Education for adoption criteria for the establishment of new community colleges and state universities, which criteria shall address:

(a) Proximity to existing institutions and assessment of the impact on existing institutions.

(b) Potential program duplication.

(c) Regional demographic characteristics.

(d) The efficient use of resources.

Section 5. Section 240.214, Florida Statutes, is created to read:

240.214 State University System accountability process.—It is the intent of the Legislature that an accountability process be implemented which provides for the systematic, ongoing evaluation of quality and effectiveness in the State University System. It is further the intent of the Legislature that this accountability process monitor performance at the system level in each of the major areas of instruction, research, and public service, while recognizing the differing missions of each of the state universities. The accountability process shall provide for the adoption of systemwide performance standards and performance goals for each standard identified through a collaborative effort involving the State University System, the Legislature, and the Governor's Office. The accountability process shall be implemented in incremental phases, as follows:

(1) No later than December 31, 1991, and annually thereafter, the board shall submit to the Legislature an evaluation of the production of classroom contact hours at each university pursuant to s. 240.243. The evaluation must include a specific analysis of the contact-hour expectations resulting from the multiplication of the requirements of s. 240.243 by the instructional man-years generated through the legislative enrollment formula. The analysis must, in addition, include the contact-hour expectations resulting from the multiplication of 84 percent of the positions provided for undergraduate enhancement by the contact-hour requirements of s. 240.243. The board may also conduct this analysis using alternative formulas. The board shall recommend to the Legislature any appropriate modifications to this section, s. 240.243, or other current policies. These recommendations shall be included in the annual accountability report submitted pursuant to subsection (3). The reports developed pursuant to this section shall be designed in consultation with the Legislature.

(2) By October 1, 1991, the Board of Regents shall submit to the Governor, the President of the Senate, and the Speaker of the House of Representatives, a plan for the implementation of the balance of the State University System accountability process. The plan shall be designed in consultation with the Legislature, the Governor's Office, and the Office of the Auditor General. The plan must provide a timetable that identifies the specific performance standards and related goals to be implemented each year and must provide for full implementation of the

accountability process by December 31, 1993. The plan must also identify the data files that will be used to substantiate achievement of performance goals. If it is necessary to develop new data files or modify existing files, the plan must describe the content of such files and include a sample file format. The plan must include, at a minimum, data on the following performance standards:

(a) Total student credit hours produced, by institution and by discipline;

(b) Total number of degrees awarded, by institution and by discipline;

(c) Total number of contact hours of instruction produced by faculty, by institution, rank, and course level;

(d) Pass rates on professional licensure examinations, by institution;

(e) Institutional quality as assessed by follow-up surveys of alumni, parents, clients, and employers;

(f) Length of time and number of academic credits required to complete an academic degree, by institution and by degree.

(g) Enrollment, progression, retention, and graduation rates by race, gender, and disability;

(h) Student course demand analysis; and

(i) Classroom utilization.

(3) Beginning December 1, 1992, the Board of Regents shall submit an annual accountability report providing information on the implementation of performance standards and achievement of performance goals during the prior year and initiatives to be undertaken during the next year. The accountability reports shall be designed in consultation with the Governor's Office, the Office of the Auditor General, and the Legislature.

Section 6. The Office of the Auditor General shall conduct an assessment of the State University System accountability plan provided for in section 240.214, Florida Statutes, which must include the following components:

(1) Evaluation of the extent to which the performance standards included in the plan are valid, reliable, and can be measured;

(2) Assessment of controls and procedures to be established to ensure the accuracy and completeness of the performance standards and supporting data files which will be used as the basis for measuring progress toward accomplishment of the performance goals;

(3) Evaluation of the year, established by the State University System, which shall serve as the data base line for each performance standard; and

(4) Assessment of the basis of the weighted value formula, established by the State University System, for each performance standard.

The Office of the Auditor General shall submit the assessment to the Governor, the President of the Senate, and the Speaker of the House of Representatives by December 31, 1991.

Section 7. Beginning January 1, 1993, the Board of Regents shall conduct an annual evaluation of the performance of the Chancellor and the state university presidents in achieving the performance goals established in the State University System accountability plan provided in section 240.214, Florida Statutes.

Section 8. Subsection (11) is added to section 240.2011, Florida Statutes, to read:

240.2011 State University System defined.—The State University System shall consist of the following:

(11) A university with a main campus in Southwest Florida.

Section 9. Subsection (3) is added to section 240.207, Florida Statutes, to read:

240.207 Board of Regents; appointment of members; qualifications and terms of office.—

(3) To create an orderly succession of Regents and the appointment of two Regents each year, one additional Regent shall be appointed in 1991 to serve a 6-year term, and one additional Regent shall be appointed in 1992 to serve a 6-year term. For the four seats with terms ending in 1993, the Governor shall make one appointment for a 3-year term and two appointments for regular 6-year terms. For 1 year, from January 1992 to January 1993, there shall be a total of 15 Regents. All the members of the Board of Regents serving on the effective date of this act shall complete their regular terms, as prescribed by the Secretary of State.

Section 10. Present paragraphs (a) through (r) of subsection (3) of section 240.209, Florida Statutes, 1990 Supplement, are redesignated as paragraphs (b) through (s), respectively; and a new paragraph (a) is added to that subsection, present paragraphs (d) and (e) of that subsection are amended, and subsections (5) and (7) of that section are amended, to read:

240.209 Board of Regents; powers and duties.—

(3) The board shall:

(a) Develop a plan for the future expansion of the State University System and recommend the establishment of new universities consistent with the criteria adopted by the State Board of Education pursuant to s. 229.053. The plan must include a procedure for the periodic assessment of the need for a new state university and specific standards for the minimum acreage, building space, staffing, and programmatic mix of state universities.

(e)~~(d)~~ By December 1 of each year, set the resident undergraduate matriculation and financial aid fees for the subsequent fall term, which will produce no more than 25 percent of

the prior year's cost of undergraduate programs. Fees charged for graduate, medical, veterinary, and dental programs may be increased by the Board of Regents in the same percentage as the increase in fees for resident undergraduates. However, in the absence of legislative action to the contrary in an appropriations act, the board may not approve annual fee increases for resident students in excess of 10 percent. The sum of nonresident student matriculation and tuition fees must be sufficient to defray the full cost of undergraduate education. Graduate, medical, veterinary, and dental fees charged to nonresidents may be increased by the board in the same percentage as the increase in fees for nonresident undergraduates. However, in implementing this policy and in the absence of legislative action to the contrary in an appropriations act, annual fee increases for nonresident students may not exceed 25 percent. In the absence of legislative action to the contrary in the General Appropriations Act, the fees shall go into effect for the following fall term. If the Legislature provides for an alternative fee calculation in an appropriations act, the board shall establish a fee schedule required to produce the fee revenue established in the appropriations act based on the assigned enrollment. The board may approve the expenditure of any fee revenues resulting from the product of the fee schedule adopted pursuant to this section and the assigned enrollment unless otherwise provided in the General Appropriations Act. ~~Set the specific in-state and out-of-state student tuition and matriculation fees which will generate an amount sufficient to equal the total matriculation and tuition fee revenues which are established annually in the General Appropriations Act.~~ The board is authorized to collect for financial aid purposes an amount not to exceed 5 percent of the student tuition and matriculation fee per credit hour. The revenues from fees are to remain at each campus and replace existing financial aid fees. Such funds shall be disbursed to students as quickly as possible. The board shall specify specific limits on the ~~An amount not greater than 40~~ percent of the fees collected in a fiscal year which may be carried forward unexpended to the following fiscal year. A minimum of 50 percent of ~~these~~ funds from the student financial aid fee shall be used to provide financial aid based on absolute need. A student who has received an award prior to July 1, 1984, shall have his eligibility assessed on the same criteria that was used at the time of his original award. ~~Each university shall report annually to the Board of Regents and the Department of Education on the criteria used to make awards, the amount and number of awards for each criterion, and a delineation of the distribution of such awards.~~

(f)~~(e)~~ Establish and maintain systemwide personnel programs for all State University System employees, including a systemwide personnel classification and pay plan, notwithstanding provisions of law that grant authority to the Department of Administration or its secretary over such programs for state employees. The board shall consult with the legislative appropriations committees regarding any major policy changes related to classification and pay which are in conflict with those policies in effect for career service employees with similar job classifications and responsibilities. The board may adopt rules delegating its authority to the Chancellor or the universities. The board shall submit, in a manner prescribed by law, any reports concerning State University System personnel programs as shall be required of the Department of Administration for other state employees. The Department of Administration shall retain authority over State University System employees for programs established in ss. 110.116, 110.123, 110.1231, 110.1232, 110.1234, 110.1235, and 110.1238 and in chapters 121, 122, and 238. The board shall adopt only those rules necessary to provide for a coordinated, efficient systemwide program and shall delegate to the universities all authority necessary for implementation of the program consistent with these

coordinating rules so adopted and applicable collective bargaining agreements. Notwithstanding the provisions of s. 216.181(4), the salary rate controls for positions in budgets under the Board of Regents shall separately delineate ~~be in~~ the ~~categories of~~ general faculty~~, university support personnel,~~ and all other categories.

(5) The Board of Regents is responsible for:

(a) Adopting a rule specifying the definitions and procedures to be used in the calculation of the percentage of cost paid by students. The rule must provide for the calculation of the full cost of education and general programs by levels of instruction and of other programs as separately identified in the annual expenditure analysis. The rule shall be developed in consultation with the Legislature.

~~(a) Considering the relationship between tuition and general revenue appropriations in recommending tuition levels to the Legislature.~~

(b) Coordinating with the Postsecondary Education Planning Commission the programs, including doctoral programs, to be reviewed every 5 years or whenever the board determines that the effectiveness or efficiency of a program is jeopardized. The board shall define the indicators of quality and the criteria for program review for every program. Such indicators shall include need, student demand, and resources available to support continuation. The results of the program reviews shall be tied to the university budget requests.

(c) Coordinating the roles of the universities in order to best meet state needs and reflect cost-effective use of state resources.

(d) Advising the Legislature concerning opportunities for bonding university revenues, including certificate of participation bonds.

(7) The Board of Regents is authorized to permit full-time State University System employees who ~~have at least 6 continuous months of state government service and~~ meet academic requirements to enroll for up to 6 credit hours of tuition-free courses per term on a space-available basis.

Section 11. Section 240.2094, Florida Statutes, is created to read:

240.2094 State University System management flexibility.—

(1) Notwithstanding the provisions of ss. 216.031, 216.181, 216.262, and 240.271 to the contrary and pursuant to the provisions of s. 216.351, funds for the operation of the State University System shall be requested and appropriated within budget entities, program components, program categories, lump sums, or special categories. Funds appropriated to the State University System for each program category, lump sum, or special category may be transferred to traditional categories for expenditure by the Board of Regents. The Board of Regents shall provide each university an approved budget based upon the appropriations act, and the universities shall develop an annual operating budget that allocates funds by program component and traditional expenditure category.

(2) Notwithstanding the provisions of s. 216.181 and pursuant to the provisions of s. 216.351, no lump-sum plan is required to implement the special categories, program categories, or lump-sum appropriations. Upon release of the special categories, program categories, or lump-sum appropriations by the Executive Office of the Governor to the Board of Regents, the Comptroller, upon the request of the Board of Regents, shall transfer or reallocate funds to or among accounts established for each university within each budget entity, for disbursement purposes. The Board of Regents shall maintain records to account for the original appropriation.

(3) Notwithstanding the provisions of ss. 216.031, 216.181, 216.251, and 216.262 to the contrary and pursuant to the provisions of 216.351, the Board of Regents shall establish the authorized positions and initial approved salary rate and may amend such positions and rate, within the maximum number of total positions and salary rate authorized annually in the appropriations act.

Section 12. Section 240.324, Florida Statutes, is created to read:

240.324 Community college efficiency and effectiveness.—

(1) It is the intent of the Legislature that a management and accountability process be implemented which provides for the systematic, ongoing improvement and assessment of the improvement of the quality and efficiency of the State Community College System. Accordingly, the State Board of Community Colleges and the community college boards of trustees shall develop and implement a plan to improve and evaluate the instructional and administrative efficiency and effectiveness of the State Community College System. This plan must address the following issues:

(a) Graduation rates of AA and AS degree-seeking students compared to first-time enrolled students seeking the associate degree.

(b) Minority student enrollment and retention rates.

(c) Student performance, including student performance rates on college level academic skills tests, mean grade-point averages for community college AA transfer students, and community college student performance on state licensure examinations.

(d) Job placement rates of community college vocational students.

(e) Student progression by admission status and program.

(f) Other measures as identified by the Postsecondary Education Planning Commission and approved by the State Board of Community Colleges.

(2) By January 1, 1992, the State Board of Community Colleges shall submit to the Governor, the President of the Senate, and the Speaker of the House of Representatives a plan for addressing these issues. The plan must provide a specific timetable that identifies specific issues to be addressed each year and must provide for full implementation by December 31,

1994. Beginning December 31, 1992, the State Board of Community Colleges shall submit an annual interim report providing the results of initiatives taken during the prior year and the initiatives and related objective performance measures proposed for the next year. The initial plan and each interim plan shall be designed in consultation with staff of the Governor and the Legislature.

(3) Beginning January 1, 1993, the State Board of Community Colleges shall address within the annual evaluation of the performance of the executive director, and the boards of trustees shall address within the annual evaluation of the presidents, the achievement of the performance goals established in the community college accountability plan.

Section 13. Section 240.20941, Florida Statutes, is created to read:

240.20941 Vacant faculty positions.—Notwithstanding the provisions of s. 216.181(3), (4), and (5), and pursuant to the provisions of s. 216.351, actions to reduce positions, rate, or salaries and benefits, excluding salary lapse calculations, taken by the Legislature, by the Executive Office of the Governor, or by the Administration Commission which relate specifically to vacant positions, and which are applied on a uniform basis to all state employee positions, may affect the positions within the faculty pay plan approved and administered by the Board of Regents only to the extent that they do so by express reference to this section.

Section 14. Paragraph (a) of subsection (2) of section 240.299, Florida Statutes, 1990 Supplement, is amended to read:

240.299 Direct-support organizations; use of property; board of directors; audit; status.—

(2) USE OF PROPERTY.—

(a) The Board of Regents is authorized to permit the use of property, facilities, and personal services at any state university by any university direct-support organization, and, subject to the provisions of this section, direct-support organizations may establish accounts with the State Board of Administration for investment of funds pursuant to part IV of chapter 218.

Section 15. Subsection (3) of section 240.2097, Florida Statutes, 1990 Supplement, is amended to read:

240.2097 Education programs, limited access status; transfer students; counseling manual; student handbook; rules.—The Board of Regents shall adopt rules to include the following provisions:

(3)~~(a) The Board of Regents shall compile and update annually a systemwide counseling manual for distribution to the state's community colleges by March 1 of each year. Such manual shall consist of two sections, the first providing information by institution, the second providing information by academic program. The board shall prescribe a standardized format for the submission of information by each state university. The board shall consult with the Division of Community Colleges and, to the extent possible, prescribe a standardized format that is compatible with the Division of Community Colleges' computer-assisted student~~

~~advising network established pursuant to s. 240.2099.~~

~~(b)~~ Each university shall compile and update annually a student handbook that includes, but is not limited to, a comprehensive calendar that emphasizes important dates and deadlines, student rights and responsibilities, appeals processes available to students, a roster of contact persons within the administrative staff available to respond to student inquiries, and a statement as to the State University System policy on acquired immune deficiency syndrome including the name and telephone number of the university acquired immune deficiency syndrome counselor. Each student handbook must include a statement displayed prominently which provides that the university will not tolerate the sale, possession, or use of controlled substances, with the exception of medication prescribed by a physician and taken in accordance with the prescribed usage, nor will the university tolerate the consumption of alcoholic beverages by students younger than 21 years of age or the sale of alcoholic beverages to students younger than 21 years of age. Each student handbook must also list the legal and university-specific sanctions that will be imposed upon students who violate the law or university policies regarding controlled substances and alcoholic beverages.

Section 16. Section 240.272, Florida Statutes, 1990 Supplement, is amended to read:

240.272 Carryforward of unexpended funds.—Notwithstanding the provisions of s. 216.301 to the contrary, the Executive Office of the Governor shall, on July 1 of each year, certify forward all unexpended funds appropriated for the State University System. Any unexpended funds in the current year operating budget, including unexpended student fee revenues, shall be carried forward by the Board of Regents for use by the university to which the funds were allocated.

(1) Such carryforward shall not exceed 5 percent of the total operating budget of the university. Funds carried forward pursuant to this section shall be expended for nonrecurring expenses as approved by the Board of Regents.

(2) No university shall be penalized in the allocation of subsequent funds as a result of the carryforward of an unexpended balance.

Section 17. Subsection (5) of section 240.531, Florida Statutes, is amended to read:

240.531 Establishment of educational research centers for child development.—

(5) Each educational research center for child development shall be funded by a portion of the Capital Improvement Trust Fund fee established by the Board of Regents pursuant to s. 240.209(3)(h)~~(c)~~. Each university which establishes a center shall receive a portion of such fees collected from the students enrolled at that university, usable only at that university, equal to 22.5 cents per student per credit hour taken per term, based on the summer term and fall and spring semesters. This allocation shall be used by the university only for the establishment and operation of a center as provided by this section and rules promulgated hereunder. Said allocation may be made only after all bond obligations required to be paid from such fees have been met.

Section 18. Paragraph (g) of subsection (5) of section 240.551, Florida Statutes, 1990 Supplement, is amended to read:

240.551 Florida Prepaid Postsecondary Education Expense Program.—

(5) The Florida Prepaid Postsecondary Education Expense Program shall be administered by the Prepaid Postsecondary Education Expense Board as an agency of the state. The Prepaid Postsecondary Education Expense Board is hereby created as a body corporate with all the powers of a body corporate for the purposes delineated in this section. For the purposes of s. 6, Art. IV of the State Constitution, the board shall be assigned to and administratively housed within the Division of Benefits of the Department of Insurance, but it shall independently exercise the powers and duties specified in this section. The board shall consist of seven members to be composed of the Insurance Commissioner and Treasurer, the Comptroller, the Chancellor of the Board of Regents, the Executive Director of the State Board of Community Colleges, and three members appointed by the Governor and subject to confirmation by the Senate. Each member appointed by the Governor shall possess knowledge, skill, and experience in the areas of accounting, actuary, risk management, or investment management. Each member of the board not appointed by the Governor may name a designee to serve the board on behalf of the member; however, any designee so named shall meet the qualifications required of gubernatorial appointees to the board. Members appointed by the Governor shall serve terms of 3 years except that, in making the initial appointments, the Governor shall appoint one member to serve for 1 year, one member to serve for 2 years, and one member to serve for 3 years. Any person appointed to fill a vacancy on the board shall be appointed in a like manner and shall serve for only the unexpired term. Any member shall be eligible for reappointment and shall serve until a successor qualifies. Members of the board shall serve without compensation but shall be reimbursed for per diem and travel in accordance with s. 112.061. Each member of the board shall file a full and public disclosure of his financial interests pursuant to s. 8, Art. II of the State Constitution and corresponding statute.

(g) The board shall annually prepare or cause to be prepared a report setting forth in appropriate detail an accounting of the fund and a description of the financial condition of the program at the close of each fiscal year. Such report shall be submitted to the President of the Senate, the Speaker of the House of Representatives, and members of the State Board of Education on or before March 31 ~~+~~ each year. In addition, the board shall make the report available to purchasers of advance payment contracts. The board shall provide to the Board of Regents and the State Board of Community Colleges by March 31 each year complete advance payment contract sales information including projected postsecondary enrollments of qualified beneficiaries. The accounts of the fund shall be subject to annual audits by the Auditor General or his designee.

Section 19. Section 240.552, Florida Statutes, 1990 Supplement, is amended to read:

240.552 Florida Prepaid Tuition Scholarship Program.—The Florida Prepaid Tuition Scholarship Program is hereby established with the intent to provide economically disadvantaged youth with prepaid postsecondary tuition scholarships. The direct-support organization established pursuant to s. 240.551 shall administer the program with the assistance and cooperation of the Department of Education ~~school districts and the Florida~~

~~Association of School Administrators~~ to achieve the following objectives:

(1) Provide an incentive for economically disadvantaged youth to improve school attendance and academic performance in order to graduate and pursue a postsecondary education.

(2) Obtain the commitment and involvement of private sector entities by virtue of funding matches with a ratio of 50 percent provided by the private sector and 50 percent provided by the state.

(3) Purchase prepaid tuition scholarships for students ~~designated and~~ certified by the Department of Education ~~school districts~~ to the direct-support organization who meet minimum economic and school requirements and remain drug free and crime free.

(a) For the purpose of this subsection, "drug free" means not being convicted of, or adjudicated delinquent for, any violation of chapter 893 after being designated a recipient of a Florida prepaid tuition scholarship.

(b) For the purpose of this subsection, "crime free" means not being convicted of, or adjudicated delinquent for, any felony or first degree misdemeanor as defined in ss. 775.08 and 775.081 after being designated a recipient of a Florida prepaid tuition scholarship.

Section 20. Subsection (2) of section 282.308, Florida Statutes, 1990 Supplement, is amended to read:

282.308 State University System information resources management plan.—

(2) The Chancellor of the Board of Regents shall review, recommend modifications to, and approve each university plan and shall provide a copy of each university's approved plan and a copy of the approved State University System Strategic Information Resources Management Plan to the commission by May 1 of each even-numbered year. Such plans are not subject to approval by the commission, but shall support and further the goals and objectives of the master plan required pursuant to s. 240.209(3)(j)~~(i)~~, the policies and objectives of the functional plan prepared by the Department of Education pursuant to s. 186.021, and the goals and policies of the State Strategic Plan for Information Resources Management specified in s. 282.3061.

Section 21. Subsection (2) of section 447.203, Florida Statutes, 1990 Supplement, is amended to read:

447.203 Definitions.—As used in this part:

(2) "Public employer" or "employer" means the state or any county, municipality, or special district or any subdivision or agency thereof which the commission determines has sufficient legal distinctiveness properly to carry out the functions of a public employer. With respect to all public employees determined by the commission as properly belonging to a statewide bargaining unit composed of State Career Service System employees or Selected Professional

Service employees, the Governor shall be deemed to be the public employer; and the Board of Regents shall be deemed to be the public employer with respect to all public employees within the State University System as provided in s. 240.209(3)(f)~~(c)~~, except that such employees shall have the right, in elections to be conducted at each university by the commission pursuant to its rules, to elect not to participate in collective bargaining. In the event that a majority of such voting employees at any university elect not to participate in collective bargaining, they shall be removed from the applicable Board of Regents bargaining unit. If, thereafter, by election conducted by the commission pursuant to its rules, a majority of such voting employees elect to participate in collective bargaining, they shall be included again in the applicable Board of Regents bargaining unit for such purpose. The board of trustees of a community college shall be deemed to be the public employer with respect to all employees of the community college. The district school board shall be deemed to be the public employer with respect to all employees of the school district. The Board of Trustees of the Florida School for the Deaf and the Blind shall be deemed to be the public employer with respect to the academic and academic administrative personnel of the Florida School for the Deaf and the Blind. The Board of Correctional Education shall be deemed to be the public employer with respect to all officers and employees of the Correctional Education School Authority.

Section 22. Subsection (3) and paragraph (a) of subsection (5) of section 240.409, Florida Statutes, 1990 Supplement, are amended to read:

240.409 Florida Public Student Assistance Grant Fund; eligibility for grants.—

(3) Based on the unmet financial need of an eligible applicant, the full amount of a Florida public student assistance grant must be between $200 and $1,500 per academic year or the amount specified in the General Appropriations Act. When funds are not sufficient to make full awards to all eligible applicants, the department shall reduce the amount of each recipient's grant award pro rata. For any year in which a pro rata grant reduction is necessary, such adjustment shall be made by reducing the second semester or the second and third quarter award disbursements to grant recipients. In each such instance, institutions shall notify students of award adjustments. ~~Priority in the awarding of state student assistance grants to first-time applicants shall be given to entering first-year freshman students and then to community college transfer students. Eligibility for grant renewal shall be limited to students who meet the provisions of s. 240.404. Renewal grants shall take precedence over new awards in any year in which funds are not sufficient to meet the total need.~~

(5)(a) Payment of Florida public student assistance grants may be transmitted to the president of the state university or community college which the recipient is attending, or to his representative, in advance of the registration period. Institutions shall notify students of the amount of their awards.

Section 23. Subsection (3) and paragraph (a) of subsection (5) of section 240.4095, Florida Statutes, are amended to read:

240.4095 Florida Private Student Assistance Grant Fund; eligibility for grants.—

(3) Based on the unmet financial need of an eligible applicant, the full amount of a Florida

private student assistance grant must be between $200 and $1,500 per academic year or the amount specified in the General Appropriations Act. When funds are not sufficient to make full awards to all eligible applicants, the department shall reduce the amount of each recipient's grant award pro rata. For any year in which a pro rata grant reduction is necessary, such adjustment shall be made by reducing the second semester or the second and third quarter award disbursements to grant recipients. In each such instance, institutions shall notify students of award adjustments. ~~Priority in the awarding of student assistance grants to first-time applicants shall be given to entering first-year freshman students and then to community college transfer students. Renewal grants shall take precedence over new awards in any year in which funds are not sufficient to meet the total need.~~

(5)(a) Payment of Florida private student assistance grants may be transmitted to the president of the college or university which the recipient is attending, or to his representative, in advance of the registration period. Institutions shall notify students of the amount of their awards.

Section 24. Subsection (3) and paragraph (a) of subsection (5) of section 240.4097, Florida Statutes, 1990 Supplement, are amended to read:

240.4097 Florida Postsecondary Student Assistance Grant Fund; eligibility for grants.—

(3) Based on the unmet financial need of an eligible applicant, the full amount of a Florida postsecondary student assistance grant must be between $200 and $1,500 per academic year or the amount specified in the General Appropriations Act. When funds are not sufficient to make full awards to all eligible applicants, the department shall reduce the amount of each recipient's grant award pro rata. For any year in which a pro rata grant reduction is necessary, such adjustment shall be made by reducing the second semester or the second and third quarter award disbursements to grant recipients. In each such instance, institutions shall notify students of award adjustments. ~~Priority in the awarding of student assistance grants to first-time applicants shall be given to entering first-year freshman students and then to community college transfer students. Renewal grants shall take precedence over new awards in any year in which funds are not sufficient to meet the total need.~~

(5)(a) Payment of Florida postsecondary student assistance grants may be transmitted to the president of the eligible institution which the recipient is attending, or to his representative, in advance of the registration period. Institutions shall notify students of the amount of their awards.

Section 25. Paragraph (c) of subsection (8) of section 228.072, Florida Statutes, 1990 Supplement, is amended to read:

228.072 Adult general education.—

(8) FINANCING.—

(c)~~1.~~ No matriculation or tuition fees shall be charged for adult basic instruction for students who demonstrate literacy skills below the eighth-grade level or for adult basic or secondary

education instruction for students who have not obtained high school diplomas. All other students with high school diplomas or the equivalent who are taking adult basic or secondary education instruction must pay matriculation and tuition fees in accordance with s. 230.645 and the rules adopted by the State Board of Education.

~~2. All students enrolled in vocational preparatory programs shall be charged fees equivalent to the fees charged for postsecondary adult vocational instruction, except that students enrolled in vocational preparatory programs who have not obtained high school diplomas or the equivalent or who have basic skills which have been determined to be at or below the eighth-grade level as provided by State Board of Education rule are exempt from this requirement. When college preparatory and vocational preparatory instruction are provided in the same class section, the community college may charge a single fee for both types of instruction.~~

~~3. All students enrolled in college preparatory programs shall be charged fees equivalent to the fees charged for credit courses at the community college.~~

~~4. Fees collected annually for recreation and leisure time programs shall be equal to, but not exceed, the cost of providing such programs by a school district or community college.~~

Section 26. Present subsections (6), (7), (8), (9), (10), (11), and (12) of section 230.645, Florida Statutes, are renumbered as subsections (10), (11), (12), (13), (14), (15), and (16), respectively; and new subsections (5), (6), (7), and (8) are added to that section, and subsection (5) of that section is renumbered as subsection (9) and is amended, to read:

230.645 Postsecondary student fees.—

(5) The Commissioner of Education shall recommend to the State Board of Education no later than December 31 of each year a schedule of fees for adult job-preparatory and vocational supplemental programs. The fee schedule must be based on the amount of student fees necessary to produce 10 percent of the prior year's cost of adult job-preparatory programs and 25 percent of the average prior year's cost of vocational supplemental programs. However, the commissioner's recommended annual increase in fees charged to resident students may not exceed 10 percent. The sum of nonresident student fees must be sufficient to defray the full cost of education. However, in implementing this policy, the commissioner may not recommend annual fee increases for nonresident students which exceed 25 percent.

(6) The State Board of Education shall adopt a fee schedule to produce the required fee revenues calculated pursuant to subsection (5). In the absence of a provision to the contrary in the General Appropriations Act, the fee schedule shall take effect. If the Legislature provides for an alternative fee calculation in an appropriations act, the state board shall establish a fee schedule required to produce the amount of fee revenue established in the appropriations act.

(7) The State Board of Education shall adopt a rule specifying the definitions and procedures to be used in the calculation of the percentage of cost paid by students. The rule must provide for the calculation of the full cost of educational programs as the product of the base student allocation times the weighted enrollment of the programs. The rule shall be developed in consultation with the Legislature.

(8) Each district school board may collect for financial aid purposes an additional amount up to, but not exceeding, 5 percent of the total fees collected for adult job-preparatory, vocational-preparatory, and vocational supplemental instruction. The revenues from these fees shall be used to provide financial aid on the basis of student need. Such funds shall be disbursed to students as quickly as possible.

(9)~~(5) Required fees shall be set annually in the General Appropriations Act. The General Appropriations Act shall specify a single range of fees for postsecondary adult vocational and supplemental vocational instruction, respectively, that shall be maintained by both community colleges and school districts.~~ School districts shall establish a fee for each other program specified in subsection (1) which may vary no more than 10 percent from the fee amount established in the General Appropriations Act. However, any school board-administered area vocational-technical center may conduct customized supplemental vocational instruction if the instruction is requested by a private employer solely for the benefit of his employees. Such instruction may not be made available for public enrollment. The school board shall charge the private employer the full cost of the provision of such instruction, and enrollment may not be counted for state funding purposes. ~~Nonresident fees shall be twice the amount of resident fees.~~

Section 27. Present subsections (6), (7), (8), (9), and (10) of section 240.35, Florida Statutes, 1990 Supplement, are renumbered as subsections (10), (11), (12), (13), and (14), respectively; and present subsections (5) and (11) of that section are renumbered as subsections (7) and (15), respectively, and are amended, and new subsections (5), (6), (8), and (9) are added to that section, to read:

240.35 Student fees.—

(5) Subject to review and final approval by the State Board of Education, the State Board of Community Colleges shall adopt by December 31 of each year a resident fee schedule for the following fall for advanced and professional programs, postsecondary vocational programs, and college-preparatory programs which produces revenues in the amount of 25 percent of the full prior year's cost of these programs. The State Board of Community Colleges shall establish a resident fee schedule that produces 10 percent of the prior year's cost of adult vocational programs and a resident fee schedule that produces 25 percent of the prior year's cost of vocational supplemental programs. However, the board may not adopt an annual fee increase in any program for resident students which exceeds 10 percent. Beginning with Fiscal Year 1992-1993 and, in the absence of a provision to the contrary in an appropriations act, the fee schedule shall take effect and the colleges shall expend the funds on instruction. If the Legislature provides for an alternative fee calculation in an appropriations act, the board shall establish a fee schedule that produces the fee revenue established in the appropriations act based on the assigned enrollment.

(6) Fees collected annually for recreation and leisure-time programs must equal the full cost of providing such programs by a community college.

(7)~~(5) Unless specifically provided in the General Appropriations Act, the State Board of Community Colleges shall establish the average matriculation and tuition fees required to generate at least the amount of revenue established annually in the General Appropriations Act~~

~~for credit and noncredit instruction programs, as defined in this section; however, fees for postsecondary adult vocational and supplemental vocational instruction shall be established pursuant to s. 230.645.~~ Each community college board of trustees shall establish matriculation, tuition, and noncredit fees, which may vary no more than 10 percent from the fee schedule adopted by the State Board of Community Colleges. However, any community college may conduct customized supplemental vocational instruction if the instruction is requested by a private employer solely for the benefit of his employees. Such instruction may not be made available for public enrollment. The community college board of trustees shall charge the private employer the full cost of the provision of such instruction, and enrollment may not be counted for state funding purposes ~~this statewide average rounded to the nearest one-fourth dollar for all instruction except postsecondary adult vocational and supplemental vocational instruction. Adult basic, general equivalency diploma, and secondary discipline data may not be used in the calculation in these averages. Tuition for an out-of-state resident shall be at least twice the amount of tuition for a state resident for both credit programs and noncredit programs.~~

(8) The sum of nonresident student matriculation and tuition fees must be sufficient to defray the full cost of each program. Beginning with Fiscal Year 1992-1993, the annual fee increases for nonresident students established by the board, in the absence of legislative action to the contrary in an appropriations act, may not exceed 25 percent.

(9) The State Board of Community Colleges shall adopt a rule specifying the definitions and procedures to be used in the calculation of the percentage of cost paid by students. The rule must provide for the calculation of the full cost of educational programs based on the allocation of all funds provided through the general current fund to programs of instruction, and other activities as provided in the annual expenditure analysis. The rule shall be developed in consultation with the Legislature.

(15)~~(11)~~ Each community college board of trustees may establish a separate fee for capital improvements which may not ~~to~~ exceed $1 per credit hour or credit-hour ~~credit hour~~ equivalent for residents and which equals or exceeds $3 per credit hour for nonresidents. Funds collected through these fees may not be bonded. The fee shall be collected as a component part of the registration and tuition fees, paid into a separate account, and expended only to maintain, improve, or enhance the educational facilities of the community college. Projects funded through the use of the capital improvement fee shall meet the survey and construction requirements of chapter 235. Pursuant to s. 216.0158, each community college shall identify each project, including maintenance projects, proposed to be funded in whole or in part by such fee. A maximum of 15 cents per credit hour may be allocated from the capital improvement fee for child care centers conducted by the community college.

Section 28. Paragraph (c) of subsection (3) of section 240.359, Florida Statutes, is amended to read:

240.359 Procedure for determining state financial support and annual apportionment of state funds to each community college district.—The procedure for determining state financial support and the annual apportionment to each community college district authorized to operate a community college under the provisions of s. 240.313 shall be as follows:

(3) DETERMINING THE APPORTIONMENT FROM STATE FUNDS.—

(c) The apportionment to each community college from the community college program fund for current operations shall be based on an assigned full-time equivalent enrollment as determined in paragraphs (a), (b), and (d) and shall consider the cost level of each field of study and the matriculation and tuition fee revenues provided for in s. 240.35 or in the General Appropriations Act. However, students in community education service programs shall not be counted for full-time equivalent enrollment. There shall be an adult basic skills education program adjustment, the total amount of which shall be determined annually in the General Appropriations Act. The apportionment of the adjustment to each community college providing adult basic skills education shall be determined as the difference between 105 percent of the appropriation per full-time equivalent student and the actual reported expenditures per full-time equivalent student for the adult basic skills education program times the assigned number of full-time equivalent students for a given year; provided that should the appropriation be less than the total computed adjustment for all colleges, each community college shall receive its proportionate share of the appropriation. For the purpose of determining program costs, the adult basic skills education program costs shall be reported separately from the adult secondary program costs.

Section 29. Paragraph (a) of subsection (5) of section 240.605, Florida Statutes, is amended to read:

240.605 State tuition vouchers.—

(5)(a) The annual percentage adjustment in the State Tuition Voucher Fund must equal the percentage adjustment of state funding in the Instruction and Research/Educational and General Appropriation Category in the State University System, but the adjustment may not exceed 10 percent in a given year. However, the amount of the tuition voucher issued to a full-time student shall be no less than $1,150 and no more than 40 percent of the full cost to the state ~~$2,000~~ per academic year of an undergraduate student in public postsecondary education established pursuant to s. 240.209 or as specified in the General Appropriations Act. The tuition voucher may be paid on a prorated basis in advance of the registration period. The department shall make such payments to the college or university in which the student is enrolled for credit to the student's account for payment of tuition and fees. Institutions shall certify to the department the amount of funds disbursed to each student and shall remit to the department any undisbursed advances or refunds within 60 days of the end of regular registration. Students shall not be eligible to receive the award for more than 9 semesters or 14 quarters, except as otherwise provided in s. 240.404(3).

Section 30. Subsection (3) of section 229.805, Florida Statutes, is amended to read:

229.805 Educational television.—

(3) POWERS OF DEPARTMENT OF EDUCATION.—

(a) The Department of Education is authorized to encourage:

~~1. The activation of unused reserve educational television channels;~~

1.~~2.~~ The extension of educational television network facilities;

2.~~3.~~ The coordination of Florida's educational television with that of other states and with the Federal Government; and

3.~~4.~~ The further development of educational television within the state.

(b) The department shall provide through educational television and other electronic media a means of extending educational services to all the state system of public education, except the State University System as defined in s. 240.2011, which provision by the department shall be limited by paragraph (c) and by s. 229.8051(1). The department shall recommend to the state board rules and regulations necessary to provide such services.

(c) The department is authorized to provide equipment, funds, and other services to extend and update both the existing and the proposed educational television and radio systems of tax-supported and nonprofit, corporate-owned facilities~~; except that no new system shall be funded where the result thereof is a substantial duplication of any system specified in s. 229.8051(1)~~. All stations funded must be qualified by the Corporation for Public Broadcasting. New stations eligible for funding shall provide a first service to an audience that is not currently receiving a broadcast signal or provide a significant new program service as defined by State Board of Education rules. Funds appropriated to the department for educational television and funds appropriated to the department for educational radio may be used by the department for either educational television or educational radio, or for both.

Section 31. Section 229.8051, Florida Statutes, is amended to read:

229.8051 Public broadcasting program system.—

(1) There is created a public broadcasting program system for the state. This program system shall be administered by the Department of Education pursuant to policies adopted by the State Board of Education and shall complement and share resources with the instructional programming service of the Department of Education and educational UHF, VHF, ITFS, and FM stations in the state. This program system shall include:

(a) Support for existing Corporation for Public Broadcasting qualified program system educational radio and television stations and new stations meeting Corporation for Public Broadcasting qualifications and providing a first service to an audience that does not currently receive a broadcast signal or providing a significant new program service as defined by State Board of Education rules ~~all educational radio and television stations broadcasting and receiving state programming support grants as of July 1, 1980~~.

(b) Maintenance of quality broadcast capability for educational stations which are part of the program system.

(c) Interconnection of all educational stations which are part of the program system for

simultaneous broadcast and of such stations with all universities and other institutions as necessary for sharing of resources and delivery of programming.

(d) Establishment and maintenance of a capability for statewide program distribution with facilities and staff, provided such facilities and staff complement and strengthen existing or future educational television and radio stations in accordance with paragraph (a) and s. 229.805 (3)(c) ~~and except that no systems or services will be created where there will be a substantial duplication of any system specified in paragraph (a)~~.

(e) Provision of both statewide programming funds and station programming support for educational television and educational radio to meet statewide priorities. Priorities for station programming need not be the same as priorities for programming to be used statewide. Station programming may include, but shall not be limited to, citizens' participation programs, music and fine arts programs, coverage of public hearings and governmental meetings, equal air time for political candidates, and other public interest programming.

(2) The Department of Education is assigned responsibility for implementing the provisions of this section pursuant to part III of chapter 287 and is authorized to employ personnel, acquire equipment and facilities, and perform all duties necessary for carrying out the purposes and objectives of this section.

(3) The State Board of Education shall adopt rules for the proper enforcement and carrying out of these provisions.

Section 32. Subsection (3) of section 159.703, Florida Statutes, is amended to read:

159.703 Creation of research and development authorities.—

(3) The resolution shall designate not less than five persons who are residents and electors of, or have their principal place of employment in, the county as members of the authority created for said county. Of the members first appointed, one shall serve for 1 year, one for 2 years, one for 3 years, and the remainder for 4 years and in each case until his successor is appointed and has qualified. Thereafter, the board shall appoint for terms of 4 years each a member or members to succeed those whose terms expire, except that with respect to an authority that owns, occupies, or maintains a research development park, as defined in s. 159.27(7), within which is located a substantial capital project that is funded, in whole or in part, by the state and is a part of, or directly affiliated with, the National High Magnetic Field Laboratory, the first two such vacancies that occur on or after July 1, 1991, shall not be filled. In addition to the other members, the president of each affiliated institution of higher education, or the president's designee, shall be a member of the authority and shall serve ex officio; provided, further, that with respect to an authority that owns, occupies, or maintains a research development park, as defined in s. 159.27(7), within which is located a substantial capital project that is funded, in whole or in part, by the state, and is a part of, or directly affiliated with, the National High Magnetic Field Laboratory, the Chancellor of the State University System or the Chancellor's designee, the Director of the National High Magnetic Field Laboratory or the Director's designee, one resident of the county in which the research development park is located appointed by the President of the Senate to serve at the pleasure of

the President of the Senate, and one resident of the county in which the research development park is located appointed by the Speaker of the House of Representatives to serve at the pleasure of the Speaker of the House of Representatives shall be members of the authority and shall serve ex officio. Except as to members who serve ex officio, the board shall fill any vacancy for an unexpired term. A member of the authority shall be eligible for reappointment. Any member of the authority may be removed by the board for misfeasance, malfeasance, or willful neglect of duty. Each member of the authority before entering upon his duties shall take and subscribe the oath or affirmation required by the State Constitution. A record of each such oath shall be filed with the Department of State and with the clerk of the circuit court.

Section 33. It is the intent of the Legislature that full-time State University System faculty members be encouraged to fulfill their public service assignments by developing and implementing strategies to improve public schools. By October 1, 1993, the Board of Regents shall submit a report to the Legislature and the State Board of Education which describes the level of service to the public schools, and any strategies developed by these faculty members which have been implemented in the public schools.

Section 34. If any provision of this act or the application thereof to any person or circumstance is held invalid, the invalidity does not affect other provisions or applications of the act which can be given effect without the invalid provision or application, and to this end the provisions of this act are declared severable.

Section 35. This act shall take effect upon becoming a law.

Approved by the Governor May 3, 1991.

Filed in Office Secretary of State May 3, 1991.